

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PKDC, LLC, *Complainant*

v.

CMA CGM S.A., *Respondent*

DOCKET NO. 24-21

Served: May 6, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER GRANTING MOTIONS TO WITHDRAW AND EXTEND DEADLINES

This matter came on for consideration of Complainant's: 1) Motion to Withdraw Certain Counsel for Complainant (Dkt. 51); and 2) Motion to Further Extend Scheduling Deadlines (Dkt. 52). For the reasons set for below, both motions are **GRANTED**, and all briefing deadlines are extended by two weeks.

In the motion to withdraw, Complainant seeks leave for two of its counsel to withdraw with a plan for an attorney who entered an appearance on March 20, 2026, and is unfamiliar with the case, to represent Complainant moving forward. The motion asserts that both of Complainant's former lead attorneys are no longer available to provide legal representation, one having a serious illness rendering him unable to work and the other having left the firm unexpectedly and no longer practicing law.

In the motion to extend the scheduling deadlines, Complainant seeks a two-week extension of the briefing deadlines established in the March 27, 2026, order extending deadlines, which sets May 11, 2026, as the deadline to file Complainant's brief and related filings. (Dkt. 49.) Complainant states in the body of the motion that the parties conferred and that Respondent does not oppose the requested extension. Complainant asserts that an extension is necessary so that its new counsel has sufficient time to: review the record and draft the initial brief, proposed findings of fact, and appendix; and consult with additional counsel with experience practicing before the Commission.

As an initial matter, it is unclear from the record whether or not a motion seeking leave to withdraw is necessary in this instance. 46 C.F.R. § 502.23(e) only requires a motion to be filed where: 1) written consent is not obtained; or 2) if the party is not otherwise represented. Otherwise, filing a stipulation of substitution is the appropriate mechanism. 46 C.F.R. § 502.23(d).

Despite the uncertainty as to the appropriate mechanism to accomplish the task at hand, I find that entry of an order granting leave to withdraw is warranted because Complainant remains represented, prior counsel are no longer available to represent Complainant, and the interests of

judicial efficiency are promoted by disposing of both pending motions simultaneously in a manner that avoids further delay of this administrative proceeding.

With respect to the motion to extend the scheduling order, I find that good cause exists to extend the schedule as requested. It is obvious that new counsel will require time to familiarize himself with the case in order to effectively take over representation of an ongoing matter, and a two-week extension of briefing schedule is reasonable under the circumstances.

Accordingly, both the motion to withdraw and motion to extend scheduling order are **GRANTED**. The parties are ordered to follow this schedule:

May 26, 2026	Complainant's initial brief, proposed findings of fact, and appendix
June 25, 2026	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
July 7, 2026	Complainant's reply and responses to proposed findings of fact

MARY A. HERVEY -
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Mary Apostolakos Hervey
Administrative Law Judge